

Policy Title: Comprehensive Development Plans

Policy Number: Part 7, Planning and Land Use; Chapter 1, Plans; Section 2

Type of Policy: Regulatory

Adopting Resolution: CC06-540

Effective Date: December 5, 2006

Adoption Date: December 5, 2006

Administrative Revision Date: September 2019

Policy Custodian: Planning and Zoning Division

References: Clear Creek/I-76 Comprehensive Development Plan and Intergovernmental Agreements for the Clear Creek/I-76 Joint Planning Area; Zoning Resolution; Resolutions CC91-1014, CC04-489

Purpose: To provide for Comprehensive Development Plans and to establish standards to amend Comprehensive Development Plans or other such planning document(s).

A. A Comprehensive Development Plan (CDP) is a planning document that has been adopted by the Board of County Commissioners pursuant to an Intergovernmental Agreement (IGA).

B. Jefferson County currently has the following Comprehensive Development Plan:

1. [Clear Creek/I-76 Comprehensive Development Plan and Intergovernmental Agreements for the Clear Creek/I-76 Joint Planning Area](#)

C. Amendments to Comprehensive Development Plans

1. If the application is for land located in unincorporated Jefferson County:
 - a. Any person desiring an amendment shall submit an application requesting such amendment to the Planning and Zoning Division.
 - b. The application fee and referral/review process shall be the same as the rezoning process set forth in the Jefferson County Zoning Resolution, unless the IGA specifies a different referral/review process. The other parties to the IGA shall receive a referral for comment.
 - c. The Planning Commission Hearing shall be the same as the rezoning process set forth in the Jefferson County Zoning Resolution, except that:

- 1) Staff shall attempt to schedule any such hearing near the same time as the hearing to be held by the other party(ies) to the IGA.
 - 2) The Planning Commission may hear the companion rezoning case at the same hearing as the hearing on amendment of the CDP.
 - 3) Parties to the IGA shall also be allowed to testify.
 - 4) The Board of County Commissioners may determine that exigencies of time do not allow the application to be heard by the Planning Commission.
 - 5) The CDP or IGA may specify a different hearing procedure, in which case such procedure would be followed.
- d. The Board of County Commissioners Hearing shall be the same as the rezoning process set forth in the Jefferson County Zoning Resolution, except that:
- 1) Staff shall attempt to schedule any such hearing near the same time as the hearing to be held by the other party(ies) to the IGA.
 - 2) The Board of County Commissioners may hear the companion rezoning case at the same hearing as the hearing on the amendment of the CDP or IGA.
 - 3) Parties to the IGA shall also be allowed to testify.
 - 4) The time, date, location and purpose of the hearing shall be published 30 days prior to the hearing. Sign posting shall not be required.
 - 5) The CDP or IGA may specify a different hearing procedure, in which case such procedure would be followed.
- e. The Board of County Commissioners shall consider whether the proposed amendment would further the health, safety and welfare of the residents of Jefferson County and further the interests set forth in county land use enabling legislation.
- f. The Board shall pass a resolution to approve or deny the amendment. Any resolution of approval shall state that it is not effective unless the other party(ies) to the IGA also approve the proposed amendment.
2. If the proposed amendment to the CDP is in an area not located in unincorporated Jefferson County, the Planning Commission and Board of County Commissioners Hearing requirements set forth above shall be followed.